Rule 25. *Copies of papers.* When books, records, papers or documents have been received in evidence, a true copy or any material or relevant part may be substituted during or at the conclusion of the hearing.

Rule 26. *Posthearing briefs.* Posthearing briefs may be submitted upon such terms as may be agreed upon by the parties and the presiding Administrative Judge at the conclusion of the hearing.

Rule 27. *Transcript of proceedings.* Testimony and argument at hearings are reported verbatim, unless the Board otherwise orders. Transcripts or copies of the proceedings are supplied to the parties and others at such rates as may be fixed by the Board.

Rule 28. *Withdrawal of exhibits.* After a decision has become final, the Board, in its discretion, upon request and after notice to the other party, may direct or permit the withdrawal of all or part of original exhibits. The substitution of true copies of exhibits or photographs of physical objects may be required by the Board as a condition of withdrawal.

Parties

Rule 29. *Representation of the Parties.* (a) *The Appellant.* An individual appellant may appear before the Board in person, a corporation by an officer, a partnership or joint venture by a member, or any of these by an attorney-at-law admitted to practice before the highest court of the District of Columbia or any State, Commonwealth, or territory of the United States. An attorney representing an appellant shall file a written notice of appearance with the Board.

(b) *The Government.* Government counsel may, in accordance with their authority, represent the interest of the Government before the Board. They shall file notices of appearance with the Board.

Rule 30. *Third Party Practice.* The Board, on its own motion, or on the motion of any party may (1) notify any and all persons with legal capacity to sue and be sued and who appear to have an interest in the subject matter of any pending appeal to appear as a party or parties and assert their interest therein; or (2) on motion of the Government may summon any such third person or persons against whom the Government may be asserting a claim or contingent claim for recovery of money paid by the Government in respect of the transaction or matter which constitutes the subject of the appeal to appear as a party or parties and defend their interest, if any, in such appeal. Such motion if made by an appellant shall be filed at the time the complaint is filed; if made by the Government it shall be filed on or before the date on which the Government is required to answer.

Rule 31. *Settlement.* A dispute may be settled at any time before the Board renders its decision by the appellant filing a written notice withdrawing the appeal or by written stipulation of the parties settling the dispute. Proceedings may be suspended while the parties are considering settlement.

Decisions and Reconsideration of Decisions

Rule 32. *Decisions.* Decisions of the Board are rendered in writing. Copies are forwarded simultaneously to both parties. The rules of the Board and all final orders and decisions are open for public inspection at the offices of the Board in Washington, D.C. Decisions of the Board are made solely upon the record, as described in Rule 17.

Rule 33. *Motion for reconsideration.* A motion for reconsideration shall set forth specifically the grounds relied upon to sustain the motion and shall be filed within 30 days from the date of receipt of a copy of the Board's decision.

Dismissals and Sanctions

Rule 34. *Dismissal for lack of jurisdiction.* Any motion addressed to the jurisdiction of the Board shall be promptly filed. A hearing on the motion may be afforded on application of either party. The Board has the right at any time on its own motion to raise the issue of its jurisdiction to proceed with a particular case and do so by an appropriate order, affording the parties an opportunity to be heard.

Rule 35. *Dismissal without prejudice.* When the Board is unable to proceed with disposition of an appeal for reasons not within its control, such appeal is placed in a suspense status. In any case where such suspension has continued, or it appears that it may continue for a period in excess of one year, the Board may dismiss the appeal without prejudice to its restoration to the Board's docket when the cause of suspension has been eliminated. Unless either party or the Board acts to reinstate any appeal so dismissed within three years from the date of dismissal, the dismissal is automatically converted to a dismissal with prejudice without further action by the parties or the Board.

Rule 36. *Dismissal for failure to prosecute or defend.* Whenever a record discloses the failure of any party to file documents required by these rules, respond to notices or correspondence from the Board, comply with orders of the Board, or otherwise indicates a party's intention not to continue the prosecution or defense of an appeal, the Board may issue an order requiring the offending party to show cause why the appeal should not be dismissed or granted, as appropriate.

Rule 37. *Sanctions.* If any party fails or refuses to obey an order issued by the Board, the Board may make such order in regard to the failure as it considers necessary to the just and expeditious conduct of the appeal, including dismissal with prejudice.

Court Remands

Rule 38. *Remand from court.* Whenever any court remands a case to the Board for further proceedings, each of the parties shall, within 20 days of such remand, submit a report to the Board recommending procedures to be followed so as to comply with the court's order. The Board considers the reports and enters special orders governing the handling of the remanded case. To the extent the court's directive and time limitations permit, such orders conform to these rules.

§ 12-60.203 Effective date.

This part shall apply to all appeals relating to contracts entered into on or after March 1, 1979, and at the contractor's election, to appeals relating to earlier contracts with respect to claims pending before the contracting officer on March 1, 1979, or initiated thereafter. In addition, the Board may, upon notice to the parties, apply any part of these rules not mandated by the Contract Disputes Act of 1978 to any appeal pending under the prior rules of the Board; however, if any party to such an appeal objects, in writing, within 20 days after receipt of notice, these rules do not apply unless the Board finds their application to be just and warranted. The contract appeals rules in effect prior to the publication of these rules shall remain in effect for the completion of appeals pending on March 1, 1979.

Issued in Washington, D.C., on July 10, 1979.

Brock Adams,

Secretary of Transportation.

[FR Doc. 79-22742 Filed 7-25-79; 8:45 am]

BILLING CODE 4910-62-M

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

43 CFR Public Land Order 5672

[S-2708]

California; Reservoir Site Restoration No. 52; Revocation of Reservoir Site Reserve No 17; Opening of Lands in Powersite Reserve No. 328 and Power Projects Nos. 2179 and 2467 Subject to Section 24 of the Federal Power Act

AGENCY: Bureau of Land Management (Interior).

ACTION: Final rule.

SUMMARY: This order revokes Reservoir Site Reserve No. 17 and opens certain lands in Powersite Reserve No. 328 and Power Projects Nos. 2179 and 2467 to the provisions of section 24 of the Federal Power Act of June 10, 1920. This action is required in order to permit an exchange between the Bureau of Land Management and the Merced Irrigation District.

EFFECTIVE DATE: July 26, 1979.

FOR FURTHER INFORMATION CONTACT: Louis B. Bellesi, 202-343-8731.

By virtue of the authority contained in section 204 of the Federal Land Policy and Management Act of 1976, 90 Stat. 2751; 43 U.S.C. 1714, and pursuant to the determination by the Federal Power Commission (now Federal Energy

Regulatory Commission) in DA–1098–California, it is ordered as follows:

1. The Executive Order of June 8, 1926, creating Reservoir Site Reserve No. 17 is hereby revoked as to the following described land:

Mount Diablo Meridian

T. 3 S., R. 15 E.,
Sec. 35, SW¼SE¼.

2. The Executive Order of December 31, 1912, creating Powersite Reserve No. 328 and Power Projects Nos. 2179 and 2467, filed February 21, 1963, and April 24, 1964, respectively, are hereby opened subject to the provisions of Section 24 of the Federal Power Act as to the following described land:

Mount Diablo Meridian

T. 4 S., R. 15 E.,
Sec. 14, E½SE¼SE¼;
Sec. 23, NE¼SE¼.
T. 5 S., R. 15 E.,
Sec. 3, lots 7 through 15 (formerly lot 2 in SW¼SE¼) and that part of the bed of the Merced River fronting lots 10 and 11.

The areas described above aggregate 121.50 acres in Mariposa County.

In DA–1098–California, the Federal Power Commission (now the Federal Energy Regulatory Commission) determined that the value of the above lands in sections 14 and 23, T. 4 S., R. 15 E., and section 3, T. 5 S., R. 15 E., for power development purposes will not be injured or destroyed by location, entry, or selection under the public land laws subject to the provisions of section 24 of the Federal Power Act and further subject to the inclusion in the instrument of conveyance of a covenant binding upon the patentee, its successor or assigns, providing that the use of the land will not endanger health, create a nuisance, or otherwise be incompatible to the overall operation of Power Projects Nos. 2179 and 2467.

3. The State of California has waived its preference right for highway rights-of-way or material sites as provided by the Federal Power Act of June 10, 1920, 16 U.S.C. 818, as to the 40-acre tract.

4. This revocation is in furtherance of consummating an exchange under section 206 of the Federal Land Policy and Management Act of 1976, 90 Stat. 2756, 43 U.S.C. 1716, which will benefit a Federal land program.

Inquiries concerning the lands should be addressed to the Bureau of Land Management, Room E–2841, Federal Office Building, 2800 Cottage Way, Sacramento, California 95825.

July 19, 1979.

Guy R. Martin,

Assistant Secretary of the Interior.

[FR Doc. 79–23075 Filed 7–25–79; 8:45 am]

BILLING CODE 4310–84–M

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43 CFR Ch. II

[Public Land Order 5667]

Alaska

Correction

In FR Doc. 79–19896 appearing on page 37508 in the issue of Wednesday, June 27, 1979 make the following change.

On page 37508, in the third column the paragraph numbered "1." should have read:

1. As listed in paragraph 1.a. on page 5433, column 3, **Federal Register**, Vol. 44, of PLO 5657 under Copper River Meridian, the description for T. 28 N., R. 6 E., Sections 1 through 34, is modified to read T. 28 N., R. 6 E., Sections 31 through 34. The description for T. 28 N., R. 7 E., Sections 1 through 20 is deleted. These modifications are made to reflect the T. 28 N., Rs. 6 and 7 E., are protracted as partial townships and do not contain all the sections listed in the original description.

FEDERAL COMMUNICATIONS COMMISSION

47 CFR Part 90

[SS Docket No. 78–394; FCC 79–422]

Private Land Mobile Radio Service; Changing the Method for Assigning Frequencies for Trunked Systems in the 806–866 MHz Bands

AGENCY: Federal Communications Commission.

ACTION: Report and Order.

SUMMARY: The Federal Communications Commission (FCC) amends its rule to modify the frequencies assignment procedures for trunked radio systems in 806–821 and 851–866 MHz bands. The existence rule requires FCC to assign frequency for trunked radio systems in this band sequential. This sequential assignment caused intermodulation interference and reduced efficiency when these systems combine several transmitters on one antenna. The new rule permits FCC to assign frequency for trunked radio systems according non-sequential block arrangement of frequency. This new arrangement will lessen intermodulation interference and will increase the efficiency of trunked radio systems.

EFFECTIVE DATE: August 27, 1979.

ADDRESSES: Federal Communications Commission, 1919 M Street N.W., Washington, D.C. 20554.

FOR FURTHER INFORMATION CONTACT: Neal Pike, Private Radio Bureau (202) 632–6497.

Report and Order

Adopted: July 12, 1979.

Released: July 18, 1979.

In the matter of amendment of § 90.365 (§ 89.751) of the Commission's Rules to change the method for assigning frequencies for trunked systems in the 806–866 MHz bands, SS Docket No. 78–394. See 44 FR 22079, April 13, 1979.

1. On January 8, 1979, the Commission released a Notice of Proposed Rule Making proposing rule changes which would provide for modified procedures in the assignment of frequencies for trunked radio systems from those now specified in the rules.[1] The Notice was published in the **Federal Register** on January 18, 1979 (44 FR 3736). In the case of trunked systems, it has been alleged that the present method of assigning frequencies may result in significant increase in system costs, in high levels of intermodulation interference, and perhaps more significantly, in reduction of system efficiency. Therefore, the Commission studied a number of alternative frequency assignment methodologies for trunked systems in the 806 to 821 MHz and 851 to 866 MHz bands.

2. Primary consideration was given to retaining the sequential assignment procedure now prescribed by the rules but this was rejected because of the reasons given. A random assignment procedure was also considered but was not chosen because it would be difficult to administer; it provides little incentive to applicants to reduce interference by using interference suppression techniques and it is inconsistent with the overall plan for 800 MHz under which the Commission assigns

[1] The rules adopted by the Commission in Docket 18262 provide for the assignment of frequencies for trunked and for conventional radio systems in the 806–821 and 851–866 MHz bands sequentially; that is, assign the first assignable frequency followed by the next assignable frequency and proceed to the end of the band in a uniform 25 kHz channeling. Section 90.365(a) (formerly 89.751(a)). See also *Land Mobile Radio Service, Second Report and Order*, Docket 18262, 46 FCC 2d 752 (1974). The rules also provide for the assignment of a mimimum of five and a maximum of twenty contiguous channel pairs for the operation of trunked systems authorized in the Public Safety, Industrial, and Land Transportation Radio Services in the 806–822 and in the 851–866 MHz bands.